Program Name: Avendra Condiments/Sauces/Stove Top

Program ID : PRG-1009363

Distributor: BEN E KEITH-DC-DALLAS/FT WORTH
7650 WILL ROGERS BLVD
FORT WORTH TX 76140-6022

Effective Dates: January 1, 2015 through May 1, 2015
Print Date: February 5, 2015

Price Type: Fixed Price, Rebate

BEN E KEITH-DC-DALLAS/FT WORTH,

We are pleased to confirm pricing information for orders placed between January 1, 2015 and May 1, 2015 for the below named operators only. During this time period, product sold to BEN E KEITH-DC-DALLAS/FT WORTH for delivery to operators will receive the fixed price, rebate type price to BEN E KEITH-DC-DALLAS/FT WORTH for the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Colleen Lerner

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0200450659	AVENDRA	702 KING FARM BLVD ROCKVILLE MD 20850-5774

PRG-1009363 - Fixed Price

SCC#	Product Description	Fixed Price Pays To: Distributor
00196823905700	BULLSEYE 4/1 GA BBQ ORIGINAL	$40.01 / CS

00195825905700	BULLSEYE 4/1 GA BBQ ORIGINAL	$40.01 / CS
00210006154500	KR 1/5# GRATED PARMESAN	$24.05 / CS
00210006154525	KR 1/5# GRATED PARMESAN	$24.05 / CS
00210006156600	KR 1/5# PARMESAN SHRED FRESH	$22.25 / CS
00210006156625	KR 1/5# PARMESAN SHRED FRESH	$22.25 / CS
00210006421900	KR 4/1 GA MAYO	$35.45 / CS
00210006789600	KR 4/1GA BBQ SAUCE ORIGINAL	$36.31 / CS
00210006789700	KR 4/1GA BBQ SAUCE SMOKE	$36.31 / CS
00430008060300	OPEN PIT 4/1GA ORIG BBQ	$37.78 / CS
00430008060800	OPEN PIT 1/5 GL BBQ ORIGINAL	$43.42 / CS
00430008063000	OPEN PIT 1/5 GL BBQ HICKORY	$43.42 / CS
00430008064100	OPEN PIT 4/1GL BBQ HICKORY	$37.78 / CS
00430008070500	6/48Z STV TP CHKN FLEX SERV	$51.42 / CS
00430008071000	STOVE TOP 6/3.6# CHICKEN	$51.42 / CS
00430008071100	STOVE TOP 6/3.7# CORNBRD	$51.42 / CS
00544000000100	A1 2/1GL SAUCE	$69.06 / CS
00544000000200	A1 12/10Z SAUCE	$37.35 / CS
00544000000300	A1 24/5Z SAUCE	$41.16 / CS
00544000002500	GREY POUPON 12/8Z MUST DIJON	$23.06 / CS
00544000002512	GP 12/8Z DIJON	$23.06 / CS
00544000003800	GREY POUPON 6/48Z MUST DIJON	$58.78 / CS
00544000004100	GREY POUPON 12/8Z CTRY DIJON	$22.61 / CS
00544000004600	GREY POUPON 6/48Z CTRY DIJON	$58.78 / CS
00544000005200	GREY POUPON 12/10Z SQZ DIJON	$26.53 / CS
00544000005500	GREY POUPON 6/24Z MUST DIJON	$30.89 / CS
00544000005512	GP 6/24Z DIJON	$30.89 / CS
00544000006500	A1 200/.5Z SAUCE	$30.64 / CS
00544000006700	A1 72/1.4Z SAUCE	$58.65 / CS
00544000006800	GP 4/48Z BISTRO SAUCE	$29.34 / CS
00544000006825	GP 4/48Z BISTRO SAUCE	$29.34 / CS
00544000007200	A1 12/10Z SAUCE BOLD&SPCY	$37.35 / CS
00544000113100	GREY POUPON 200/.25Z DIJON	$12.84 / CS
00544000113200	GREY POUPON 72/1.4Z DIJON	$57.81 / CS
00544000302200	GREY POUPON 2/1 GL DIJON	$52.84 / CS

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.